HOLY GHOST COLLEGE
V
TAPERA MAVHEREVEDZE
AND
FORWARD CHIPWATI VAVHEREVEDZE
AND
MISHECK MAVHEREVEDZE
AND
JACOB DZARAMBA
AND
TAURAI MUNYERI MBARE

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 28 May & 11 & 25 June, 10 & 30 July 2026

CIVIL ACTION

C. Ndlovu, for the plaintiff
M. Mutekwa, for the defendants

SIZIBA J:

1. This case was initially an opposed application which was then converted to an action due to material disputes of facts that could not be resolved on paper. On 21 August 2025, the plaintiff instituted proceedings in this court seeking to evict the defendants and all those claiming occupation through them from their homesteads which it alleges are within its school boundary. The plaintiff is a Roman Catholic Church aligned high school in Marange. It was established by a group of priests called Spiritans. When the trial commenced, the third, fourth and fifth defendants were in default and judgment was granted against them in default and hence this judgment only relates to the plaintiff as against the first and second defendants (hereinafter referred to as the defendants unless specific reference is made to each of them).

THE PLEADINGS

2. The plaintiff's case is that the presence of the defendants at its premises is now unsavory. In establishing the school, the plaintiff sought land from Chief Marange and

it was allowed to construct the school in that area. There was consultation with the Ministry of Local Government as well through the Department of Physical Planning and Mutare Rural District Council. Maps were drawn up. There was a site plan. The area was pegged. The construction of the school began in 2004 and a boarding school for boys and girls was established. The infrastructure was set up for learning and sporting activities. During the pegging of the school, it was noted that the families of the defendants were affected by the school boundary as their homesteads and fields were within the school boundary. The affected families were elderly people. After consultations with the traditional leaders, Local Government Ministry representatives and physical planning, it was resolved that the plaintiff would provide food hampers to the affected families since they would not be ploughing anymore. The elderly individuals were to remain at their homesteads for the rest of their lifetime. They were not to add new building structures in the area. Their offspring would have to set up new homes outside the school in the community. The affected families were not to interfere with the infrastructural development of the school.

3. What then triggered these proceedings according to the plaintiff is that the defendants who are the offspring of the initial settlers who co – existed well with the plaintiff have not honored this initial arrangement. They stalled the construction of a school hall by chasing away the contractors. The plaintiff tried to engage the defendants with the help of traditional leaders without success. It was advised to pursue civil remedies in court. The plaintiff even went as far as constructing 4 roomed houses under headman Muchedye in Marange for each of the defendants with round huts and toilets so that they may go and stay there but they still refused to vacate from the school area. The plaintiff is paying rates and taxes at Mutare Rural District Council over the area that was pegged for the school.

4. On the other hand, the defendants in their response denied that the plaintiff has any right to evict them. They contended that since the area is their communal area, they have a right to stay there and the plaintiff has no *locus standi* to evict them since it is not the owner of the land in question. They contended that the plaintiff set up the

school at the mercy of the Sakala family that donated its fields for the church to build a school. The plaintiff was also allowed to use the land that was left by the Phendeke family when it relocated. The defendants denied ever participating in any meetings with the plaintiff over the issue of the land. They insisted that the Chief had told the plaintiff to reach an agreement with them if it wanted their land. They were also not aware of any site plan and any pegging of the land would have been done without their participation or knowledge. They prayed for the dismissal of the plaintiff's case with costs.

5. The issues which were referred to trial are as follows:
   (a) Plaintiff's *locus standi* in seeking defendants' eviction.
   (b) Whether the plaintiff should be allowed to evict all the defendants from the premises.

THE EVIDENCE ADDUCED BEFORE THE COURT

6. The first witness for the plaintiff was Norman Masutso Chipangura, a Roman Catholic Church Priest. He reiterated the plaintiff's position as alleged in the pleadings. He insisted that he was familiar with the history of how the plaintiff had established the school at Marange. He had assumed his priesthood at the school in 2020 whilst the school had been established in 2004. He stated that the history of the school was documented at the school. When he was challenged that the defendants' parents had already passed on before the plaintiff set up its school, he conceded that he was unable to challenge such facts on his part. He insisted that he had specifically dealt with the defendants concerning the need for them to relocate from the school. He highlighted that the second defendant had been engaged about the issue of relocating from the school. He said that the second defendant identified a piece of land where he asked them to build a homestead for him. After they had put up a round hut, he requested that they put up the rest of the structures at his stand at Marange growth point. They constructed a five roomed cottage at that stand. The second defendant stopped them when they wanted to put floors as he was demanding that they should put tiles. His

evidence was that the first defendant was also free to occupy one of the three homesteads that were at Machedye Village at Marange which consisted of a round hut or kitchen, a toilet and four rooms under asbestos. He said that the first defendant had long promised to consult a relative of his and revert to him over the issue. He also highlighted that bricks and other building materials for the hall had been affected when the building of the school hall was stopped by the defendants. The donors had also lost interest in the project as time went by. He said that the plaintiff had gone as far as providing alternative homesteads to the defendants merely as an act of charity when it had no obligation to do so. He insisted that the plaintiff could not carry out its infrastructural development and progress in any manner as long as the defendants were staying at the school premises as they had a tendency of setting up their own rules against the school. They also opposed the erection of a fence on their side claiming that it would disturb their routes. He also alleged that the defendants sometimes imbibe beer and come inebriated in full view of students.

7. The second witness for the plaintiff was Justice Mafi. He was the founding headmaster who has been employed by the plaintiff as from 2004. A greater part of his sworn testimony resembled that of the first witness about the history of the school and the stalemate which the school is now in concerning its co-existence with the defendants. He confirmed that in 2009, there were skirmishes with the Mavherevedze family when the school wanted to build a dining hall. He attended the meeting which involved the Village Head and the Mavherevedze family which resolved in writing that the construction was to proceed, the two old ladies namely Annie Mavherevedze and Servellia Mavherevedze where to receive food rations from the school and that the school was to sponsor one child from the Mavherevedze family from form one up to four. This witness was also part of the team that was led by the Village Head when the pegging of the school was done in 2013 which pegging left the Mavherevedze homesteads inside the school boundary. He also highlighted that there was opposition by the Mavherevedze family to the construction of the school hall. He corroborated the testimony of the first witness about the efforts of the plaintiff in trying to provide alternative accommodation to the defendants outside the school. This witness was clear

that these defendants who were in court had not been directly engaged concerning their co-existence with the school. He also did not allege that any of them had participated in opposing any construction project in the school. He was not in a position to link the defendants with the two old ladies who signed the agreement with the school in 2009.

8. Under cross examination, the headmaster conceded that the Mavherevedze were many and he did not know all of them. He was challenged that those whom they delt with were not the ones who were in court. He also confirmed that prior to 2013, there had been no formal map for the school. He also did not dispute that the school infrastructure which was constructed prior to his arrival being the girls' hostel and a classroom block and administration block had been constructed on land that had belonged to the Sakala and Phendeke families. He could not dispute that the second defendant's mother was the late Matrida who died in 1998. He also could not dispute that the first defendant's mother was the late Servellia Mavherevedze who died in 2017. He could not dispute that she did not attend the meeting in question and that she was very old by then. He was challenged that P. Marange had not been authorized by Hama Marange to represent him during the pegging of the school. His response was that only the Village Head could confirm such allegation. He was shown four receipts which showed that the second defendant had paid school fees for his son Given Mavherevedze that he had said was sponsored by the plaintiff and his response was that he was going to seek clarity about the issue. He insisted that the defendants had been represented by their parents or mothers in the engagements with the plaintiff and that they are residing at their parent's homesteads.

9. The last witness for the plaintiff was Joseph Kagurabadza, an employee of Mutare Rural District Council in the Department of Social Services. His duties included allocation of stands, processing of lease documents, attending to issues related with provision of education and health and any other duties that may be assigned by the Chief Executive Officer. In April 2026, some members of the Mavherevedze family had complained that the plaintiff had encroached into their land. His testimony was that he was part of the team that sited and pegged the school in 2013. The pegging was

done by the physical planning personnel. There were representatives of the traditional leadership. The boundaries of the school were agreed with the traditional leadership. His sworn testimony was that when communities get affected by a new development in a communal land, it was the duty of the traditional leaders to ensure that alternative land is availed to the affected families. In the present matter, he had been made to believe that there was an arrangement that the school had entered into with the affected families. He was not able to spell out the exact terms of such arrangements. He, however, insisted that he had some documents at his office concerning such arrangement. When it was put to him under cross examination that there was no such arrangement with the families of the defendants who were in court, he insisted that the arrangement was there since there were documents relating to the same in his office. He did not have a full recollection of the individuals who had attended the pegging exercise and he could not deny when it was put to him on cross examination that the first and second defendants' families were not called to participate in the pegging of the school.

10. The evidence of this witness was that according to their position as the local authority, the plaintiff's school had been properly pegged and sited and it was expected to pay levies to them. He did not recall any developments at the school as he had gone there in 2013. He said that the proper procedure had been to have the school sited and pegged first before its establishment. He confirmed that the local authority charged levies for communal homes. He was not in a position to tell the court whether the defendants were paying the levies since the payments were made through their Village Heads. He said that a boarding school required a minimum of 34 hectares. He said there was no need for the plaintiff to add another 4 hectares if it had 30 hectares already.

11. The first defendant Tapera Mavherevedze gave his evidence under oath. He resided at Nyachityu Village under Chief Marange since 1968. He was a farmer. He had known about the plaintiff in 2000 when Chief Marange invited the whole community to come and witness the handing over of a piece of land to Father Leo. He attended the meeting. The piece of land that was given to the plaintiff was for Ephraim Mbare Munyere and

Mr Sakala who shared a common boundary. Pegs were put. The land in question was a stretch of about 900 metres by 300 metres. It did not include their fields or homes. The developments which were then put there were a church building, a homestead and a toilet. Other developments then followed. Their gardens were between the church building and the homestead that Father Leo had built. This was before 2009. Their gardens were no longer there. Their parents and in particular her own mother Servellia Mavherevedze made an agreement with Father Leo that since they were old, they would receive food rations from him for the rest of their lives. Under cross examination, he confirmed that his mother was a beneficiary of the food rations from the plaintiff until she passed on. In his testimony, it was common cause that her mother is the one who was being referred to in the alleged agreement that was being relied upon by the plaintiff's witnesses. He said that his mother was very old by then and she was the first wife of his father Cosmas Daniel Mavherevedze who passed on way back in 1982. Annie who was referred to in the alleged agreement was the second wife to his father. He shared the same father with the second defendant.

12. The first defendant confirmed that over and above the food rations, the plaintiff sunk a well for the community in 2004. His further testimony was that he was not consulted about the pegging of the school. He dissociated himself from the alleged written agreement which referred to her mother. He said that Annie had not been made a representative of their family. He agreed that he was living at the same homestead that belong to her mother although he had put up his own developments or structures. His home was 30 metres apart with that of the second defendant. He was challenged that in terms of the arrangements with their parents, the children were to be allocated pieces of land outside the school. His reply was that he was not a child even at that material time and as such that agreement was not binding to him. He agreed that their homesteads and fields were within the plaintiff's boundary. He was not willing to vacate his parents' homestead. He said he had a right to reside there as it was their communal land. He said P. Marange who attended the pegging was not the Village Head. The Village Head was Chipo Hama Marange.

13. The first defendant's further testimony was that there was a vast undeveloped area at the school and it was possible for them to co -exist with the school without the need for their eviction. He said that the parties could talk. He said that he had visited the homesteads that the plaintiff had built and he had seen that they were not complete. There was no source of water. There was no cattle pen and fowl run. He also said that the Village Head had said that he did not know about such homesteads since they had been sold to the plaintiff by people who did not involve him. He had cattle. He was challenged at cross examination that the plaintiff had no legal obligation to provide alternative homes to them and that it had been a good gesture which was being withdrawn. He conceded that this was not the first court case involving him and the plaintiff. There had been an earlier case at the Magistrates court in 2014. He denied that they had alienated their land to the plaintiff.

14. The second defendant adopted the testimony of the first defendant regarding the contested issues. He confirmed sharing the same father with the first defendant. His mother passed on in 1998 and she could not have made any negotiations with the plaintiff regarding his piece of land. He confirmed that Annie Mavherevedze and Servellia Mavherevedze were wives of his father. He denied that he had negotiated with the plaintiff about relocating from the school premises. He denied that the plaintiff had built structures at his rural stand and also at his stand at the growth point. He said that he had built his house on his own at the growth point. He said that they had not been consulted concerning the pegging of the school. He said that the allocation of the land to the plaintiff by Mutare Rural District Council was as a result of corruption. He insisted that he had a right to reside at his homestead and use his fields.

15. The defendants' last witness was Christopher Jani. He knew the two defendants. His testimony was that the plaintiff had built a homestead where his homestead had been built. This was at Muchedye Village in Marange. He does piece jobs in Masvingo and that is where he resides. He discovered this development when he came to visit his homestead in 2024. He had not left a caretaker. By then the plaintiff had already put a foundation of a house. The structures that he had built were no longer in existence. He

identified the site by the two mango trees which he had planted. He had last visited the place in 2019. He went to see the Headmaster of the plaintiff school who referred him to the priest. The priest told him that they had bought the piece of land from a certain young man. The Village head Lovemore Muchedye professed ignorance about the development and undertook to ensure that it was going to be stopped. Upon cross examination by plaintiff's counsel, he confirmed that the plaintiff had purchased the three pieces of land from three individuals being Tendai Muchedye, George Chijongwana and Fungai Marange. He confirmed that his own place had been sold by Fungai Marange who was his grandchild and that the Village Head had also signed as a witness. He had not taken up the issue in court as he had trusted that the Village Head was going to attend to the issue. He was sad about this development.

THE LAW AND ITS APPLICATION

16. The critical issue to determine in this case is whether the plaintiff is entitled to evict the defendants from the school premises. The defendants have contested the eviction on the basis of their rights to the communal land where the plaintiff has built its school. The rights that vest to individuals in communal lands have been well defined in this jurisdiction. In *Chituku and Others* v *Minister of Lands, Agriculture, Climate and Rural Resettlement and Others* CCZ 3/23 at p 24 of the typewritten judgment, the court held as follows:

"*Thus, s 8 of the Communal Land Act gives rights of occupation to community members that have occupied the land traditionally and continuously for extended periods. My reading of the section leads me to conclude that a community member in occupation of such land only has to prove that he or she is a member of a community that has traditionally and continuously been in occupation of such land. That established an entitlement to occupation. All that is required is that the person is part of a community that has continuously and traditionally occupied the land.*

However, a community must have services through schools, churches, hospitals, and other amenities. The law provides the grant of permits for occupation by persons or parties who are

not part of the traditional dwellers. The provision that permits such rights is found in s 9 of the Act."

17. The court in the above cited case proceeded at pp 46 and 47 to clarify the rights to communal land so as to differentiate those rights from the rights to private land as follows:

"*If regard is had to the provisions of s 4 of the Communal Land Act and the definition of "owner" that appears in the Regional, Town, and Country Planning Act, it stands to reason that the claim by the appellants that they are owners in their own right of the land they occupy is not justified under the law. It goes without saying that all land that is not privately owned is State land and is vested in the President. It becomes evident that all State land is controlled by and the manner of dealing with it is the preserve of the Executive.*"

18. The evidence adduced before this court confirms that the two homesteads where the defendants built their structures were part of the land that was held by their parents in the Marange community. Although they first denied it, it later became common cause that the two old ladies being Annie Mavherevedze and Servellia Mavherevedze who were surviving wives of the defendants' late father by then had arranged with the plaintiff to get food rations for the rest of their lives as a result of their fields having been taken over by the plaintiff to put up its school infrastructure. Servellia Mavherevedze was actually confirmed to be the first defendant's mother.

19. The proven facts are that when the plaintiff came in at Marange area, it liaised with Chief Marange who represented the traditional leadership of the area. It also liaised with the parents of the defendants or the two wives of their late father who were in charge of those two homesteads. The plaintiff's witnesses are backed by documentary evidence in their assertion that the arrangement with the defendants' parents was that the old ladies would get food rations for life and that their children would not expand in building structures in the same homesteads but they would have to seek alternative land outside the school premises. The letter dated 15 October 2013 from the Provincial Planning Officer to the Chief Executive Officer of Mutare Rural District Council as

well as the written agreement of 2009 which contains the names of the two old ladies confirms this arrangement. The defendants did not deny that there was an arrangement between the plaintiff and the two surviving spouses of their father but they sought to distance themselves from such arrangements. This was of no use since there is no evidence that they had separate homesteads of their own by the relevant time such that they could be said to be independent from these two old ladies. Their insistence that they were not children by then and that they ought to have been consulted as well ignores the fact that they were still living in their parents' homesteads which they have continued to do up to now without independent homesteads of their own.

20. If the two old ladies had protested against the plaintiff's occupation of their communal land from the onset, the plaintiff would properly have been accused of having intruded into the Mavherevedze communal land. This is not what happened from the evidence that was adduced before this court. The plaintiff was allowed to occupy this communal land by defendants' parents being the two surviving wives of the late defendants' father. The plaintiff was also given land that had belonged to the Sakala and Phendeke families. After being allowed to have a physical existence in this communal area so as to serve a good purpose of setting up an educational institution, the school was then pegged in 2013 by a delegation that comprised of the traditional leadership, the Department of Physical Planning under the Ministry of Local Government and Mutare Rural District Council representatives. The current position is that the plaintiff is a school that was pegged and that has a map in Marange and it is sitting on 29. 14 hectares. It is now required to pay taxes to the local authority under its permit. It has thus been accorded rights by the local authority and central government which rights have not been challenged in a court of law by the defendants.

21. There is clear evidence pointing to the sour relations between the plaintiff and the defendants. The defendants' parents alienated their exclusive rights of occupation to this communal land in favor of the plaintiff. They welcomed it. The plaintiff settled and set up its school and its boundaries were then defined by the local authority such that the defendants' homesteads and fields are within the plaintiff. This was not all, the

second defendant agreed to have plaintiff build a homestead for him in an area of his choice. A round hut was built. He then asked the plaintiff to build a house for him at his stand in Marange growth point. His denial of these facts was not genuine. The denial came in very late and it was just for the sake of denying. The first plaintiff's witness testified clearly on this aspect and no meaningful challenge to this part of his evidence was made in cross examination. He was corroborated by the sworn testimony of the Headmaster. The second defendant is therefore merely approbating and reprobating by insisting on staying within the school boundary after having agreed to relocate at plaintiff's expense.

22. The plaintiff's first two witnesses were very clear that the plaintiff had constructed three homesteads in Muchedye Village just next to the school as provision for alternative accommodation for the defendants. Those homesteads have basic infrastructure. There are toilets. They are houses roofed with asbestos. The criticism by the first defendant that there are no cattle pens and fowl runs was totally misplaced as what was basic has been provided. Alternative accommodation is meant to provide basic shelter, basic comfort and to minimize inconvenience and disruption to a disadvantaged and unfortunate litigant rather than luxurious facilities that one can always set up after taking residence at the place. The provision for alternative land or accommodation is basically meant to cushion an unfortunate litigant who is faced with the prospect of eviction in fulfilment of the considerations required by s 74 of the Constitution of Zimbabwe.

23. In his closing submissions, plaintiff's counsel cited s 12 of the Communal Land Act [*Chapter 20:04*] for the proposition that Mutare Rural District Council and the central government had a duty to provide alternative land or compensation to the defendant when being relocated from their communal land. With respect to counsel, that provision only applies to individuals who are being relocated as a result of a declaration in terms of s 6 of the Act, the setting aside of land in terms of s 10 of the Act as well as the granting of a servitude in terms of s 11 of the Act. There is no room in the same legislation for the provision of alternative land or compensation where an

outsider of the communal area has been granted a permit to utilize the land by a local authority in terms of s 9 of this Act. Nonetheless, a court of law which considers evicting individuals from their homes is enjoined to make a consideration of alternative land in terms of s 74 of the Constitution of Zimbabwe which provides as follows:

"***74 Freedom from arbitrary eviction***

No person may be evicted from their home, or have their home demolished, without an order of court made after considering all the relevant circumstances."

24. In terms of the above Constitutional provision, a court of law has a duty to consider the competing interests of the parties before granting an eviction and it must consider whether there is provision for alternative land or accommodation. See *Zimbabwe Homeless People's Federation and Others* v *Minister of Local Government and National Housing and Others SC 94/20*.

25. In the case at hand, the plaintiff has made provision for alternative land. Three homes have already been built in Muchedye Village under Chief Marange to cater for the defendants. The homestead for the second defendant was built at his chosen site and another house was put up at his stand in the growth point at plaintiff's expense. The first defendant is eligible to occupy any of those remaining three homesteads. The fact that one of those homesteads is being said to have been built up at a site that is being claimed by the last witness for the defendants does not mean that these two defendants have nowhere to go as that still leaves two more homesteads which are uncontested.

26. The evidence in this case points to the undeniable fact that the defendants' homesteads and fields are inside the area that was pegged as part of the school premises by both the local authority and government. The plaintiff acquired exclusive rights to occupy the place where it is from the local authority in terms of s 9 of the Communal Land Act [*Chapter 20:04*]. It was permitted by the local authority to carry out development so as to benefit the community at large. A Rural District Council is the administrative authority with overall control over the use and allocation of all communal land in

Zimbabwe. See *Mhundwa* v *Befura and Others* HH 178/26. The plaintiff cannot carry out its infrastructural development nor can it instil its own discipline and enforce its rules as a school upon the learners whilst the defendants are also living inside its boundary and carrying out their day to day activities which include farming and entertainment. There is already evidence of clashes that have occurred in the past that have led to plaintiff halting its construction of a school hall. It is common cause that this was not the first court case to be escalated to the courts by the parties. Having acquired the right to carry out its educational activities from both government and the local authority, the plaintiff is entitled to carry out its business within its pegged boundary without any unnecessary inconveniences.

27. The last issue to consider is whether the plaintiff has *locus standi* to evict the defendants. *Locus standi* refers to the ability of a party to bring a case before a court of law. The settled position at law is that a party with a real and substantial interest in the matter is qualified to bring legal proceedings before a court of law. See *Sibanda and Others v The Apostolic Faith Mission of Portland Oregon (South African Headquarters)* SC 49/18. Nothing has been pleaded or alleged in the evidence before this court as disqualifying the plaintiff from its legal standing in seeking the eviction of the defendants in this case. For this reason, this court makes a finding in favor of the plaintiff and holds that the plaintiff has *locus standi* in this case. This is by the mere fact that it is a school or association that holds itself as a voluntary association and that has its lawful physical existence in Marange District of Manicaland Province in Zimbabwe. It is settled law that a party which holds a lawful lease or permit to a piece of land has a right to evict those who intrude into its land. See *Mufudzi Wakanaka Anglican Church* v *Muperi and Others* HH 142/26. The costs shall follow the successful party. It is therefore ordered as follows:

(a) The plaintiff's claim for the eviction of the first and second defendants be and is hereby granted.
(b) The first and second defendants and all those claiming occupation through them are hereby ordered and directed to vacate their homesteads situated within the plaintiff's pegged boundaries.

(c) In the event that the said defendants or those claiming occupation through them fail and or refuse to vacate the said homesteads within 30 days of this order, then the Sheriff or his lawful Deputy is hereby directed to forcibly remove the defendants and their belongings from the plaintiff's premises and further to cause their homesteads therein to be demolished and or removed.

(d) The defendants shall bear the costs of suit.

Gonese and Ndlovu, plaintiff's legal practitioners
Phundu and Company, defendants' legal practitioners